

****Criticism of the National Police for Failing to Comply with Conditions for Searches in EU Information Systems****

Date: 14-07-2023

****Decision****

Law Enforcement Authorities

****Criticism****

Supervision / Self-initiated Case

In connection with a supervision of the National Police, the Data Protection Agency has made a decision in a case where the National Police did not carry out the necessary control required for searches in the Visa Information System and the EURODAC system.

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****Summary****

The Data Protection Agency has made a decision in a case where the National Police did not comply with the conditions for searches in the Visa Information System and the EURODAC system. The National Police, under certain conditions, have the opportunity to search in the respective systems for law enforcement purposes based on a request from the police districts. In this context, it is required that the National Police must always conduct a control to determine whether the police districts have complied with the conditions that may justify the National Police's search in the system.

In relation to the Visa Information System, the Data Protection Agency found that the necessary control had not been carried out in one case and had not been carried out to a sufficient degree in another case. The Data Protection Agency further found that the National Police, in one case, had not conducted a prior search in the Visa Information System before the National Police conducted a search in the EURODAC system. The National Police also have the opportunity to conduct a search for law enforcement purposes here, under certain conditions. Among other things, it is a condition for the National Police's search in the EURODAC system that a prior search in the Visa Information System has been conducted without result.

On this basis, the Data Protection Agency expressed criticism of the National Police's lack of control over the search criteria in the Visa Information System and the EURODAC system.

1. **Supervision**

The Data Protection Agency hereby returns in the supervision case regarding the National Police's processing of personal data in relation to the Visa Information System (VIS).

By letter dated March 8, 2023, the Data Protection Agency initiated a supervision of the National Police regarding searches in VIS for law enforcement purposes. In this connection, the Data Protection Agency requested information on the number of requests for access to VIS that the National Police had received in the last four years.

By letter dated March 30, 2023, the National Police informed that they had received three requests for access to VIS during the relevant period.

On April 17, 2023, the Data Protection Agency conducted a physical supervision at the National Police. The supervision was based on a review of the three requests for access to VIS, including whether the conditions for designated authorities' access to VIS in Articles 4 and 5 of the VIS Decision were met. At the meeting, the three requests were reviewed orally, and the Data Protection Agency was provided with a written list of operational units, a form for requesting access to VIS, a guideline, and an action card regarding access to VIS for law enforcement purposes.

At the request of the Data Protection Agency, the National Police sent the three cases regarding access to VIS, which were orally reviewed during the supervision at the National Police on April 17, 2023, on April 28, 2023.

Upon subsequent review of the three submitted cases, the Data Protection Agency compared the cases regarding access to VIS according to the VIS Decision with the cases regarding access to EURODAC according to the EURODAC Regulation, which the Data Protection Agency received in connection with the Data Protection Agency's supervision of the National Police's processing of

personal data under the EUODAC Regulation in 2022.

The background for the comparison of the cases was that searches in EUODAC for law enforcement purposes are conditional on a prior search in VIS, cf. Article 20, paragraph 1 of the EUODAC Regulation.

The Data Protection Agency's comparison of the cases indicated that the National Police had received a fourth request for access to VIS from around 2021, which had not been presented during the supervision on April 17, 2023. On this basis, the Data Protection Agency requested, by letter dated May 11, 2023, a statement from the National Police regarding the missing request.

By letter dated June 15, 2023, the National Police sent a statement to the Data Protection Agency regarding the request.

2. **Data Protection Agency's Decision**

Based on the supervision visit, the documents provided, and the supplementary information and statements that the Data Protection Agency subsequently received from the National Police, the supervision finds grounds to conclude as follows:

- That the National Police have not complied with the requirements in Article 4, paragraph 1 of the VIS Decision, cf. Article 5 for access to VIS, as there was no legal control in the request from 2019 (case 3) to determine whether the access conditions in Article 5 were met before the search in VIS was conducted.
- That the National Police have not complied with the requirements in Article 4, paragraph 1 of the VIS Decision, cf. Article 5 for access to VIS, as it is assessed that there was not a sufficiently reasoned legal control in the request from 2022 (case 1) before the search in VIS was conducted.
- That the National Police have not complied with the requirements in Article 20, paragraph 1 of the EUODAC Regulation, as there was no prior search in VIS conducted in connection with a search in EUODAC in a request dated December 3, 2021.

Overall, the Data Protection Agency finds grounds to state

Criticism of the Danish National Police's Non-compliance with the Requirements of the VIS Decision and the EUODAC Regulation on the Above-mentioned Three Points.

3. **The Legal Basis**

3.1. **The VIS Decision**

The VIS Decision regulates the access of designated authorities to conduct searches in VIS in connection with combating terrorism and other serious crime. The procedure for searching in the system is regulated in Article 4, paragraph 1 of the VIS Decision. It follows from this provision that if the conditions for access to VIS are met, the operational units must send a reasoned written or electronic request for access to VIS to the central access point – which in Denmark is the Danish National Police. Upon receipt, the central access point must verify that the conditions for access to VIS mentioned in Article 5 are fulfilled.

The conditions for access to search in VIS are regulated in Article 5, paragraph 1 of the VIS Decision. It follows from the provision that the access of designated authorities to search in VIS takes place within the framework of their powers if the following conditions are met:

- Access to search must be necessary for the prevention, detection, or investigation of terrorist acts or other serious criminal offenses.
- Access to search must be necessary in a specific case.
- There is reasonable ground to believe that searching in the VIS data will significantly contribute to the prevention, detection, or investigation of one of the relevant criminal offenses.

3.2. **The EUODAC Regulation**

The conditions for access to search in EUODAC are regulated in Article 20, paragraph 1 of the EUODAC Regulation. It follows, among other things, from the provision that it is a condition for searching in EUODAC that a prior search in VIS has been conducted.

The expedited procedure for searching in EUODAC is regulated in Article 19, paragraph 3 of the EUODAC Regulation. It appears from the provision that in extraordinary situations, an immediate search in EUODAC can be conducted, where a subsequent check is made to determine whether the

access conditions in Article 20, paragraph 1 are met.

4. ****The Data Protection Authority's Reasoning and Decision****

4.1. ****Request for Search in VIS from 2019 (Case 3)****

Based on what was seen and reported during the inspection visit on April 17, 2023, as well as the submitted material of April 28, 2023, the Data Protection Authority can ascertain that the Danish National Police, based on a request from T police in 2019, conducted a search in VIS, but that the Danish National Police did not beforehand conduct a legal check to determine whether the access conditions for this were met, cf. Article 4, paragraph 1 of the VIS Decision, cf. Article 5.

During the inspection visit on April 17, 2023, the Danish National Police stated that the embassy in A also conducted a search in VIS based on the request from T police, which can also be inferred from the material submitted by the Danish National Police to the Data Protection Authority. The Data Protection Authority must note in this regard that it is solely the central access point (the Danish National Police) that may conduct searches in VIS based on a reasoned request, cf. Article 4, paragraph 1.

5.2. ****Request for Search in VIS from 2022 (Case 1)****

Regarding the request from T police in 2022, the Data Protection Authority can ascertain that the Danish National Police did not conduct a sufficiently reasoned check to determine whether the access conditions for searching in VIS were met. It follows from the Danish National Police's email of April 11, 2022, that:

"Based on the conditions established in Article 5, paragraph 1 of the VIS Council Decision, the following has been emphasized in the present assessment:

- (i) access to the search is necessary for law enforcement
- (ii) access to search is necessary in a specific case
- (iii) there is reasonable ground to assume that searching in the VIS data will significantly contribute to the prevention, investigation, etc., of the relevant criminal offense (forgery), as it appears from T's request that the information is to be used in connection with prosecution, including as evidence in a criminal case in T."

The Data Protection Authority finds that particularly the first two conditions are not sufficiently reasoned. This is based on the fact that there is no reference to the circumstances of the specific case, as there is only a reproduction of the content of the conditions. It is the Data Protection Authority's assessment that the Danish National Police must conduct a specific reasoned and documented check to demonstrate that the rules are complied with, cf. Article 4 of the VIS Decision cf. Article 5. This does not appear to be the case in the above reasoning.

Furthermore, it can be inferred from the email correspondence regarding the case that the request was first sent to the Danish National Police, then to the Ministry of Foreign Affairs, further to the Ministry of Immigration and Integration, and finally back to the Danish National Police. The Data Protection Authority refers in this regard to the Danish National Police's own internal procedures for handling requests for access to VIS, cf. point 5 below, and encourages that these be followed going forward.

4.3. ****Request for Search in EURODAC****

The Data Protection Authority has compared the three requests for access to VIS under the VIS Decision with the cases concerning access to EURODAC under the EURODAC Regulation, which the Data Protection Authority was provided with and reviewed in connection with the Data Protection Authority's supervision of the Danish National Police's processing of personal data under the EURODAC Regulation for law enforcement purposes in 2022 (Data Protection Authority's case no. 2022-421-0103). This is because it is a condition for searching in EURODAC that a prior search in VIS has been conducted without leading to the identification of the registered individual, cf. Article 20, paragraph 1 of the EURODAC Regulation.

The Danish Data Protection Agency became aware, during the comparison of cases, of a request for access to information in EURODAC from the K police dated December 3, 2021, where it appears from the legal review of the case that a preliminary search in VIS had been conducted. The Data Protection Agency sent a consultation to the National Police on May 11, 2023, and requested to receive this

preliminary request for a search in VIS. On June 15, 2023, the Data Protection Agency received a statement from the National Police, indicating that no search in VIS had been conducted in connection with the request for a search in EURODAC, as there was no need for it. It can therefore be established that the National Police, in connection with the processing of the request for a search in EURODAC, did not comply with the requirement for a preliminary search in VIS, cf. Article 20, paragraph 1 of the EURODAC Regulation.

[1] Council Decision 2008/633/RIA of June 23, 2008, on access to searches in the Visa Information System (VIS) for designated authorities in the Member States and for Europol for the purpose of preventing, detecting, and investigating terrorist acts and other serious criminal offenses

[2] Regulation (EU) No. 603/2013 of the European Parliament and of the Council of June 26, 2013, establishing "Eurodac" for the comparison of fingerprints with a view to the effective application of Regulation (EU) No. 604/2013 on the criteria and procedures for determining which Member State is responsible for the examination of an application for international protection lodged in one of the Member States by a third-country national or a stateless person and on the access of Member States' law enforcement authorities and Europol to request comparisons with Eurodac data for law enforcement purposes and amending Regulation (EU) No. 1077/2011 establishing a European agency for the operational management of large-scale IT systems in the area of freedom, security, and justice (recast).